Supreme Court has used emotional language. No PM has accused militants of ‘treason’ as it has. Medieval rulers ordered humans to ‘become extinct’. Judges do not. The court rightly calls the crime a ‘terrorist act’ but ends up holding that it ‘might very well be an act of waging war’.[4] The two judges on the bench claim ‘to view the expression with the eyes of the people of free India’ and ‘dissociate ourselves from the old English and Indian authorities’, create new law and send a man to the gallows, along with some basics of criminal jurisprudence.

Both must be saved. All Constitutional tests would justify pardon on one ground alone—popular feeling in a state charged with alienation, where a peace process is underway.

B.R. Ambedkar told the Constituent Assembly on 29 December 1948: ‘The home minister who would be advising the governor on a mercy petition . . . would be in a better position to advise the governor having regard to his intimate knowledge of the circumstances of the case and the situation prevailing in that area.’ There, then, are relevant factors. They are all the more true of the Union home minister when advising the President apropos Kashmir. It is germane to the power of pardon.

Clamour for Afzal’s scalp comes ill from men who have, like accused persons of the lesser breed, avoided trial for over a decade in the Babri Masjid demolition case. The chief among them, L.K. Advani, shamelessly said that it was ‘a political case’ and did not involve ‘moral turpitude’ (20 December 1999).[5] What a message by the then Union home minister to militants all over the country.

Commenting on judicial independence, De Smith, an eminent authority on constitutional law, asked whether this implied ‘that judges should be entirely aloof from public sentiment and always disregard the strength of local feeling on an issue before them? If not, to what extent should judges take into account consideration of public policy, and how far can the government or its unruly supporters or opponents be permitted to determine what is the public interest? Judges not infrequently have to determine what is in the public interest, or whether a transaction is contrary to public policy, or whether it is necessary to impose a deterrent sentence because of the prevalence of a social evil; and in coming to such decisions, they are expected to have some regard to the general sense of the community and not to rely merely on idiosyncratic opinions. Moreover, in some political contexts, the courts allow the executive or the House of Commons the first and last word.’